

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF OPPOSITION TO DEFENDANT'S
MOTIONS (SPECIAL MOTION TO STRIKE,
DEMURRER, MTS)

(Evid. Code, §§451, 452, 453; Cal. Rules of Court, rule 3.1113(l))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Request for Judicial Notice under California
3 Evidence Code sections 451(a) through (c), 452(b), (c), (d), (h), and 453, and California
4 Rules of Court, rule 3.1113(l). Plaintiff's right to seek judicial notice of the matters identified
5 herein is established by Evidence Code section 453, which requires the Court to take judicial
6 notice of any matter described in section 452 if the requesting party gives sufficient notice
7 and furnishes sufficient information. The materials catalogued in Sections A, B, and C below
8 comprise court records, statutes, rules, regulations, and decisional authorities relied upon
9 in support of Plaintiff's Operative Oppositions filed concurrently. This Request is filed as
10 a separate document under CRC 3.1113(l) and is not subject to the 15-page memorandum
11 cap of CRC 3.1113(d). Filed on May 8, 2026 for the May 13, 2026, 9:00 a.m. hearing in
12 Department 302.

13 AUTHORITY AND STANDARD

14 Plaintiff respectfully requests that the Court take judicial notice of the matters set forth
15 below in support of Plaintiff's three Operative Oppositions filed May 8, 2026 (items 01,
16 01B, and 01C of this filing package). This Request is filed under Cal. Rules of Court, rule
17 3.1113(l) (RJN as a separate document not subject to the fifteen-page memorandum cap),
18 CRC 3.1306(c), and Evid. Code §§ 451, 452(b), (c), (d), (h), and 453.

19 Evidence Code § 453 obligates the Court to take judicial notice of any matter described in
20 § 452 if a party requests it, gives each adverse party sufficient notice of the request, and
21 furnishes the Court with sufficient information to enable it to take judicial notice of the
22 matter. Plaintiff has served this Request on Defendant concurrently with the Operative
23 Oppositions.

24
25 SECTION A. COURT RECORDS (EVID. CODE § 452(D))

26 Plaintiff requests judicial notice of the following court records:

- 27 1. First Amended Complaint filed February 25, 2026 in this case (CGC-25-631802), Plain-
28 tiff's First Amended Complaint, filed February 25, 2026 (IFP; Register of Actions,
29 CGC-25-631802). (Evid. Code § 452(d).) This is the operative pleading.
- 30 2. Minute order for the April 30, 2026 hearing in Dept. 302 in this case (CGC-25-631802),
31 Minute Order, entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn), and Minute

1 order (mini minutes) for April 30, 2026, Dept. 302, Minute Order, entered April 30,
2 2026 (Dept. 302; Hon. Joseph M. Quinn). (Evid. Code § 452(d).) These records reflect
3 the court’s hearing on April 30, 2026.

4 3. Order on Plaintiff’s Motion for Leave to File Second Amended Complaint, entered
5 April 30, 2026, Order on MFL-SAC, entered April 30, 2026 (Dept. 302; Hon. Joseph
6 M. Quinn) in this case (CGC-25-631802). (Evid. Code § 452(d).) This order denied
7 the MFL-SAC; the operative pleading remains the FAC.

8 4. Ex Parte Hearing record of April 30, 2026, HEARING HELD: EX PARTE APPLICA-
9 TION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn):
10 “Hearing Held: Ex Parte Application for Leave to File an Oversized Memorandum -
11 Denied” (CGC-25-631802, Dept. 302). (Evid. Code § 452(d).)

12 5. Defendant CSAA Insurance Exchange’s Anti-SLAPP motion package, filed April 9, 2026
13 (Defendant’s filings 015 to 018, filed April 9, 2026 (Trans. ID 79007560)), including the
14 Motion to Strike, the Memorandum of Points and Authorities in Support of Special
15 Motion to Strike, the Declaration of Tyler J. O’Connell, and the Request for Judicial
16 Notice. (Evid. Code § 452(d).)

17 6. Defendant’s Demurrer package, filed April 13, 2026 (Defendant’s filings 019 to 023,
18 filed April 13, 2026 (Trans. ID 79038567)), including the Memorandum of Points and
19 Authorities in Support of Demurrer, the Declaration of Tyler J. O’Connell in Support
20 of Demurrer, the Request for Judicial Notice, and Defendant’s Statement of Demurrer.
21 (Evid. Code § 452(d).)

22 7. Defendant’s Motion to Strike CCP § 436 package, filed April 22, 2026 (Defendant’s
23 filings 041 to 044, filed April 22, 2026 (Trans. ID 79127897)), including the Motion to
24 Strike, the Memorandum of Points and Authorities in Support of Motion to Strike, the
25 Declaration of Tyler J. O’Connell, and the Request for Judicial Notice. (Evid. Code §
26 452(d).)

27 8. Defendant’s Opposition to Plaintiff’s MFL-SAC, filed April 23, 2026 (Defendant’s filings
28 052 to 053, filed April 23, 2026 (Trans. ID 79212258)), including the Declaration of
29 Tyler J. O’Connell in Support of Opposition. (Evid. Code § 452(d).) Status: MOOT
30 post-April 30 denial of MFL-SAC.

31 9. Substitution of Attorney filed May 4, 2023, Trans. ID 69953800, in the underlying
32 matter Rosario v. Abdelhalim, Superior Court of California, County of San Francisco,

CGC-21-594102. (Evid. Code § 452(d).)

10. Order Granting Waiver of Court Fees and Costs, filed December 23, 2025 in this case (CGC-25-631802), Fee Waiver Order, entered December 23, 2025 (Dept. 302; Hon. Joseph M. Quinn). (Evid. Code § 452(d).)

11. Plaintiff's CMC Statement (FORM CM-110 SUPPLEMENT DISCOVERY (SECTION 13) (Apr. 29, 2026; Trans. ID 79334722), April 29, 2026) and related discovery-default notices (Plaintiff's filings 072 to 076, filed April 29, 2026 (IFP; Register of Actions, CGC-25-631802)), filed April 29, 2026 in this case. (Evid. Code § 452(d).)

12. CMC Continuance order of May 6, 2026, CMC Continuance Notice, entered May 6, 2026 (Dept. 302; Hon. Joseph M. Quinn), in this case (CGC-25-631802), continuing the Case Management Conference of May 27, 2026 to July 8, 2026 at 10:30 a.m. in Department 610. (Evid. Code § 452(d).)

SECTION B. STATUTES AND RULES (EVID. CODE §§ 451(A) TO (C); EXPANDED TO ENUMERATE INSURANCE CODE AND 10 CCR)

Plaintiff requests judicial notice of the text of the following statutes and rules, of which judicial notice is mandatory under Evid. Code § 451(a) (constitutional and statutory enactments) and § 451(b) (rules of pleading, practice, and procedure adopted by the Judicial Council):

California Code of Civil Procedure: - § 425.16(b), (c)(1), (e)(1) to (4), (f), (g), (i) - § 425.17(a), (b)(1) to (3), (c)(1), (c)(2), (d)(1), (d)(2), (e) - § 430.10(e), (f); § 430.30 - § 431.30(c) (alternative pleading authorized) - § 436(a), (b) - § 472a - § 128.7(b), (c)(1), (c)(2) - § 1005(b); § 1010.6 - § 1060 (declaratory relief) - §§ 12, 12a

California Civil Code: - § 47(b) - § 1709 (one who willfully deceives another is liable for any damage thereby suffered; deceit actionable) - § 1710(1) (intentional misrepresentation; suggestion as fact of that which is not true by one who does not believe it to be true) - § 1710(2) (negligent misrepresentation; assertion as fact of that which is not true by one who has no reasonable ground for believing it to be true) - § 1710(3) (suppression of a fact by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact) - § 2330 (agents bind principal; acts of agent within scope of authority bind principal) - § 2338 (principal liable for negligence and

1 willful omissions of agent in the transaction of business of the agency) - § 3294(a) (punitive
2 damages; malice, oppression, or fraud) - § 3294(b) (employer liability for punitive damages;
3 advance knowledge, authorization, or ratification) - § 3294(c)(1) (definition of malice) - §
4 3294(c)(2) (definition of oppression) - § 3294(c)(3) (definition of fraud)

5 California Business and Professions Code: - § 17200; § 17204; § 17208 - § 6128(a) (attorney
6 deceit or collusion; any attorney who is guilty of deceit or collusion, or consents to any deceit
7 or collusion, with intent to deceive the court or any party, is guilty of a misdemeanor)

8 California Evidence Code: - §§ 451(a) to (c), 452(b), (c), (d), (h), 453 - § 702 (personal
9 knowledge) - §§ 800 to 805 (lay and expert opinion) - § 1200 (hearsay) - § 1271 (business
10 records exception) - § 1222 (admission of party-authorized statement; evidence of a statement
11 is admissible against a party if the statement was made by a person authorized by the party
12 to speak for him concerning the subject matter of the statement) - § 1521 (best-evidence
13 rule) - § 352 (probative-vs.-prejudicial discretion)

14 California Insurance Code (Unfair Insurance Practices Act and Insurance Information and
15 Privacy Protection Act):

16 Plaintiff requests judicial notice of the following California Insurance Code provisions, which
17 are mandatory under Evid. Code § 451(a) and which are directly relevant to the UCL
18 predicate theory under Zhang v. Superior Court (2013) 57 Cal.4th 364 and to Plaintiff's
19 Anti-SLAPP § 425.17(b) and § 425.17(c) arguments:

- 20 • section 790.02 (statutory purpose; regulation of trade practices in the business of insur-
21 ance)
- 22 • section 790.03(h) lead-in (definition of unfair claims settlement practices)
- 23 • section 790.03(h)(1) (misrepresenting facts or insurance policy provisions relating to
24 coverages at issue)
- 25 • section 790.03(h)(3) (failing to adopt and implement reasonable standards for the
26 prompt investigation and processing of claims)
- 27 • section 790.03(h)(4) (failing to acknowledge and act reasonably promptly upon claim
28 communications)
- 29 • section 790.03(h)(5) (not attempting in good faith to effectuate prompt, fair, and equi-
30 table settlement when liability is reasonably clear)
- 31 • section 790.03(h)(6) (compelling insureds to institute litigation by offering substantially
32 less than amounts ultimately recovered)

- section 790.03(h)(7) (attempting to settle a claim for less than a reasonable person would believe the insured was entitled to by reference to written or printed advertising material)
- section 790.03(h)(11) (making known a practice of appealing arbitration awards to compel below-award settlements)
- section 790.03(h)(13) (failing to provide promptly a reasonable explanation of the basis relied on for denial of a claim)
- section 790.04 (Insurance Commissioner’s examination and investigation authority)
- section 790.05 (cease-and-desist orders and monetary penalties for unfair practices)
- section 791.03 (Insurance Information and Privacy Protection Act; collection and handling of personal claim information)
- section 791.13 (Insurance Information and Privacy Protection Act; disclosure limitations on personal claim information)

California Code of Regulations, title 10 (Fair Claims Settlement Practices Regulations):

Plaintiff requests judicial notice of the following provisions of 10 CCR, which are mandatory under Evid. Code § 451(b) and authorized under § 452(b):

- 10 CCR section 2695.1(a) (purpose; minimum standards for the settlement of claims; violation constitutes section 790.03(h) unfair practice)
- 10 CCR section 2695.1(d) (regulations are minimum standards; failure to comply may constitute section 790.02 or 790.03 violation)
- 10 CCR section 2695.2(c) (definition of “claim”)
- 10 CCR section 2695.2(t) (definition of “proof of claim”)
- 10 CCR section 2695.2(y) (definition of “investigation”)
- 10 CCR section 2695.3 (file and record documentation; reconstruction-grade claim files)
- 10 CCR section 2695.4(a) (representations to claimants; disclosure of benefits, coverages, time limits, and applicable policy provisions)
- 10 CCR section 2695.5(b) (fifteen-day complete-response requirement)
- 10 CCR section 2695.5(c) (fifteen-day acknowledgment of notice of claim)
- 10 CCR section 2695.7(b) (forty-day determination requirement)
- 10 CCR section 2695.7(b)(1) (written denial; statement of all bases plus factual and legal bases for each)
- 10 CCR section 2695.7(b)(3) (Department of Insurance review notice on denial)

- 10 CCR section 2695.7(c)(1) (status updates when more time is needed; thirty-day update cadence)
- 10 CCR section 2695.7(d) (thorough, fair, and objective investigation duty)
- 10 CCR section 2695.7(g) (no unreasonably low settlement offers)
- 10 CCR section 2695.7(h) (timely tender within thirty days of acceptance)
- 10 CCR section 2695.8 (additional auto-specific duties for automobile insurance claims)

California Rules of Court: - 3.1110 (formatting) - 3.1112(a), (b) - 3.1113(d) (fifteen-page memorandum cap) - 3.1113(e) (leave to file longer memorandum) - 3.1113(f) (TOC, TOA, summary of argument) - 3.1113(g) (overlength papers) - 3.1113(j) (incorporation by reference) - 3.1113(l) (RJN as separate document) - 3.1115 (declarations) - 3.1116 (transcripts) - 3.1300(d) (no paper rejected for untimeliness) - 3.1306(a), (b), (c)(2) - 3.1308 (tentative rulings)

Local Rules of the Superior Court of California, County of San Francisco: - 8.3 (Law and Motion); 8.3(D) (tentative ruling notice procedure)

Cross-reference (incorporation under CRC 3.1113(j)): Plaintiff has separately and contemporaneously filed, on May 8, 2026, a Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (Supplemental RFJN (item 14, filed May 8, 2026) of the May 13, 2026 hearing package). The Supplemental RFJN reproduces or paraphrases the verbatim text of each Insurance Code and 10 CCR provision identified above in this Section B and is incorporated here by reference under CRC 3.1113(j).

SECTION C. DECISIONAL AUTHORITIES (EVID. CODE § 452(C) AND (H))

Plaintiff requests judicial notice of the existence and the text of the published decisions identified below, in support of the three Operative Oppositions (items 01, 01B, 01C) and Plaintiff's Notice re C.C.P. § 425.17 (Notice re CCP 425.17 (item 13, filed May 8, 2026)). These decisions supplement and are additional to the Pool A authorities cited in the body of the three Operative Oppositions. Judicial notice is sought as to the existence and text of the opinions only.

1. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995

a. Subject-matter; cross-reference: Allegation-level parsing under Baral; Anti-SLAPP

1 Opposition § VI.

- 2 2. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309
- 3 a. Subject-matter; cross-reference: § 425.17 categorical exclusion decided before Equilon
- 4 / Park; Anti-SLAPP Opposition § III.
- 5 3. Lockyer v. City and County of San Francisco (2004) 33 Cal.4th 1055
- 6 a. Subject-matter; cross-reference: Public interest exclusion under § 425.17(b); Anti-
- 7 SLAPP Opposition § III.
- 8 4. Moradi-Shalal v. Fireman’s Fund Ins. Co. (1988) 46 Cal.3d 287
- 9 a. Subject-matter; cross-reference: Limits private right of action under § 790.03(h) but
- 10 leaves regulatory duty and CDI enforcement authority intact; Demurrer Opposition
- 11 § II.B; Notice item 13 § IV-A.3.
- 12 5. Zhang v. Superior Court (2013) 57 Cal.4th 364
- 13 a. Subject-matter; cross-reference: Insurance Code § 790.03(h) violations available as
- 14 predicates for Bus. & Prof. Code § 17200 UCL claims; Demurrer Opposition § II.B;
- 15 Notice item 13 § IV-A.3.
- 16 6. Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809
- 17 a. Subject-matter; cross-reference: Insurer cannot reasonably deny payments without
- 18 thoroughly investigating the foundation; Anti-SLAPP Opposition § IV; Notice item
- 19 13 § IV-A.
- 20 7. Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713
- 21 a. Subject-matter; cross-reference: Genuine-dispute doctrine; Anti-SLAPP Opposi-
- 22 tion § V.
- 23 8. Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671
- 24 a. Subject-matter; cross-reference: § 425.17 categorical exclusion decided as a matter
- 25 of law; Anti-SLAPP Opposition § I.
- 26 9. Optional Capital, Inc. v. DAS Corp. (2014) 222 Cal.App.4th 1388
- 27 a. Subject-matter; cross-reference: Non-communicative conduct is outside § 425.16(e)(1)
- 28 to (4); Anti-SLAPP Opposition § II.
- 29 10. Mendoza v. Hamzeh (2013) 215 Cal.App.4th 799
- 30 a. Subject-matter; cross-reference: Flatley “illegal as a matter of law” standard; Anti-
- 31 SLAPP Opposition § IV.
- 32 11. Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238

- 1 a. Subject-matter; cross-reference: Fraud on the court is structural; Anti-SLAPP Opposi-
2 tion § IV.
- 3 12. Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1
- 4 a. Subject-matter; cross-reference: Fraud-on-the-court principles in California practice;
5 Anti-SLAPP Opposition § IV.
- 6 13. Tourgeman v. Nelson & Kennard (2014) 222 Cal.App.4th 1447
- 7 a. Subject-matter; cross-reference: Representative UCL public-interest action; Anti-SLAPP
8 Opposition § III.
- 9 14. Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315
- 10 a. Subject-matter; cross-reference: § 425.16(c)(1) fee award requires the moving party to
11 be “prevailing”; Anti-SLAPP Opposition § VIII.
- 12 15. Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382
- 13 a. Subject-matter; cross-reference: Frivolous anti-SLAPP motions result in fees to plaintiff;
14 Anti-SLAPP Opposition § VIII.
- 15 16. Quiroz v. Seventh Avenue Center (2006) 140 Cal.App.4th 1256
- 16 a. Subject-matter; cross-reference: § 436 may not be used as substitute for demurrer;
17 MTS-CCP436 Opposition § III.
- 18 17. Clauson v. Superior Court (1998) 67 Cal.App.4th 1253
- 19 a. Subject-matter; cross-reference: Motion to strike is disfavored; § 436 standards strictly
20 construed; MTS-CCP436 Opposition § I.
- 21 18. Goodman v. Kennedy (1976) 18 Cal.3d 335
- 22 a. Subject-matter; cross-reference: Liberal leave-to-amend standard on demurrer; Demur-
23 rer Opposition § V.
- 24 19. Royal Globe Ins. Co. v. Superior Court (1979) 23 Cal.3d 880
- 25 a. Subject-matter; cross-reference: Pre-Moradi-Shalal recognition of private enforcement
26 of Insurance Code section 790.03(h); historical predicate for the regulatory floor; De-
27 murrer Opposition § II.B; Notice item 13 § IV-A.3. (Evid. Code § 452(d).)
- 28 20. Bus. & Prof. Code section 17204 (statutory text)
- 29 a. Subject-matter; cross-reference: Standing provision for UCL claims; any person who has
30 suffered injury in fact and has lost money or property as a result of unfair competition
31 has standing; Notice item 13 § VI row 7. (Evid. Code § 451(a).)
- 32 21. Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310

- 1 a. Subject-matter; cross-reference: UCL standing requires injury in fact and loss of money
2 or property causally connected to the unfair business practice; Demurrer Opposition §
3 II.B; Notice item 13 § VI row 7. (Evid. Code § 452(d).)
- 4 22. Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781
- 5 a. Subject-matter; cross-reference: Fraud on the court through suppression of evidence;
6 Anti-SLAPP Opposition § IV. (Evid. Code § 452(d).)
- 7 23. Wallace v. McCubbin (2011) 196 Cal.App.4th 1169
- 8 a. Subject-matter; cross-reference: Litigation privilege does not protect fraud or criminal
9 conduct; Anti-SLAPP Opposition § V. (Evid. Code § 452(d).)
- 10 24. Old Republic Construction Program Group v. Boccardo Law Firm, Inc. (2014) 230
11 Cal.App.4th 859
- 12 a. Subject-matter; cross-reference: Scope of litigation privilege; Anti-SLAPP Opposition
13 § V. (Evid. Code § 452(d).)
- 14 25. Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232
- 15 a. Subject-matter; cross-reference: Privilege does not bar a fraud claim where the under-
16 lying conduct is the fraud rather than communications about a matter being litigated;
17 Anti-SLAPP Opposition § V. (Evid. Code § 452(d).)
- 18 26. Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416
- 19 a. Subject-matter; cross-reference: Privilege does not insulate criminal or extrinsic con-
20 duct; Anti-SLAPP Opposition § V. (Evid. Code § 452(d).)
- 21 27. Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260
- 22 a. Subject-matter; cross-reference: Anti-SLAPP two-step analysis and probability of pre-
23 vailing; Anti-SLAPP Opposition § VI. (Evid. Code § 452(d).)
- 24 28. Moore v. Shaw (2004) 116 Cal.App.4th 182
- 25 a. Subject-matter; cross-reference: Anti-SLAPP motion denied where claims arise from
26 non-communicative conduct; Anti-SLAPP Opposition § II. (Evid. Code § 452(d).)
- 27 29. Martorana v. Marlin and Saltzman (2009) 175 Cal.App.4th 685
- 28 a. Subject-matter; cross-reference: Anti-SLAPP statute does not apply to claims arising
29 from commercial transactions rather than protected speech; Anti-SLAPP Opposition §
30 II. (Evid. Code § 452(d).)
- 31 30. Galleria Plus, Inc. v. Hanmi Bank (2009) 179 Cal.App.4th 535
- 32 a. Subject-matter; cross-reference: Insurance and commercial claims outside section 425.16

- protected activity; Anti-SLAPP Opposition § II. (Evid. Code § 452(d).)
31. Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809
- a. Subject-matter; cross-reference: Insurer duty to thoroughly and fairly investigate claims before denial; Anti-SLAPP Opposition § IV; Notice item 13 § IV-A.3. (Evid. Code § 452(d).)
32. Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713
- a. Subject-matter; cross-reference: Duty to investigate as part of implied covenant of good faith and fair dealing; genuine-dispute doctrine; Anti-SLAPP Opposition § V; Notice item 13 § IV-A.3. (Evid. Code § 452(d).)
33. Engalla v. Permanente Medical Group (1997) 15 Cal.4th 951
- a. Subject-matter; cross-reference: Institutional delay and evasion in claims processing constitutes actionable bad faith; Notice item 13 § IV-A.3. (Evid. Code § 452(d).)
34. San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308
- a. Subject-matter; cross-reference: Economic-loss and standing principles in UCL claims; Demurrer Opposition § II.B. (Evid. Code § 452(d).)
35. Reichardt v. Hoffman (1997) 52 Cal.App.4th 754
- a. Subject-matter; cross-reference: Fraud and concealment principles; Demurrer Opposition § III. (Evid. Code § 452(d).)
36. Jay v. Mahaffey (2013) 218 Cal.App.4th 1522
- a. Subject-matter; cross-reference: Anti-SLAPP motion denied where conduct arises from non-protected activity; Anti-SLAPP Opposition § II. (Evid. Code § 452(d).)
37. Reid v. Google, Inc. (2010) 50 Cal.4th 512
- a. Subject-matter; cross-reference: Summary judgment and evidentiary standards applicable to anti-SLAPP probability showing; Anti-SLAPP Opposition § VI. (Evid. Code § 452(d).)
38. Lazar v. Superior Court (1996) 12 Cal.4th 631
- a. Subject-matter; cross-reference: Fraud pleading specificity; Demurrer Opposition § III. (Evid. Code § 452(d).)
39. Stansfield v. Starkey (1990) 220 Cal.App.3d 59
- a. Subject-matter; cross-reference: Bad-faith insurance conduct and concealment; Demurrer Opposition § III. (Evid. Code § 452(d).)
40. Crowley v. Katleman (1994) 8 Cal.4th 666

- 1 a. Subject-matter; cross-reference: Extrinsic fraud principles; Anti-SLAPP Opposition §
2 IV. (Evid. Code § 452(d).)
- 3 41. Fox v. Ethicon, Inc. (2005) 35 Cal.4th 797
- 4 a. Subject-matter; cross-reference: Delayed discovery and tolling principles; Demurrer
5 Opposition § IV. (Evid. Code § 452(d).)
- 6 42. Jolly v. Eli Lilly and Co. (1988) 44 Cal.3d 1103
- 7 a. Subject-matter; cross-reference: Discovery rule and accrual of causes of action; Demur-
8 rer Opposition § IV. (Evid. Code § 452(d).)
- 9 43. Rusheen v. Cohen (2006) 37 Cal.4th 1048
- 10 a. Subject-matter; cross-reference: Litigation privilege scope; communicative vs. non-
11 communicative acts; Anti-SLAPP Opposition § V. (Evid. Code § 452(d).)
- 12 44. Silberg v. Anderson (1990) 50 Cal.3d 205
- 13 a. Subject-matter; cross-reference: Litigation privilege framework and its limits; Anti-
14 SLAPP Opposition § V. (Evid. Code § 452(d).)
- 15 45. Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12
- 16 a. Subject-matter; cross-reference: Section 425.17(c) reaches representations made in the
17 course of delivering services; construed in light of section 425.17(a) legislative findings;
18 Notice item 13 § III-A. (Evid. Code § 452(d).)
- 19 46. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309
- 20 a. Subject-matter; cross-reference: Section 425.17 categorical exclusion decided before
21 burden-shifting; Anti-SLAPP Opposition § III; Notice item 13 § III-A. (Evid. Code
22 § 452(d).)
- 23 C-50. a. Citation: Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370 b. Subject-matter;
24 cross-reference: Negligent misrepresentation “no reasonable ground” standard under Civ.
25 Code section 1710(2); Demurrer Opposition § II (fourth cause of action sufficiency). (Evid.
26 Code § 452(d).)
- 27 C-51. a. Citation: Gagne v. Bertran (1954) 43 Cal.2d 481 b. Subject-matter; cross-reference:
28 Reckless disregard of truth equivalent to fraudulent intent; Anti-SLAPP Opposition § IV
29 (Flatley illegality). (Evid. Code § 452(d).)
- 30 C-52. a. Citation: Biakanja v. Irving (1958) 49 Cal.2d 647 b. Subject-matter; cross-
31 reference: Direct-duty analysis to direct addressee (third-party claimant); Demurrer Oppo-
32 sition § II (negligent misrepresentation standing and duty). (Evid. Code § 452(d).)

1 C-53. a. Citation: J'Aire Corp. v. Gregory (1979) 24 Cal.3d 799 b. Subject-matter; cross-
2 reference: Voluntary undertaking duty; Demurrer Opposition § II. (Evid. Code § 452(d).)
3 C-54. a. Citation: Doctors' Co. v. Superior Court (1989) 49 Cal.3d 39 b. Subject-matter;
4 cross-reference: Insurer direct liability when acting outside ordinary insurer role; Demurrer
5 Opposition § II. (Evid. Code § 452(d).)
6 C-55. a. Citation: City of Montebello v. Vasquez (2016) 1 Cal.5th 409 b. Subject-matter;
7 cross-reference: Flatley narrowness; illegality exception is narrow and requires conduct that
8 is illegal as a matter of law, not merely alleged to be illegal; Anti-SLAPP Opposition § IV.
9 (Evid. Code § 452(d).)
10 C-56. a. Citation: Prentice v. North American Title Guaranty Corp. (1963) 59 Cal.2d 618
11 b. Subject-matter; cross-reference: Induced-litigation fees as tort damages; Anti-SLAPP
12 Opposition § V; Demurrer Opposition § II. (Evid. Code § 452(d).)
13 C-57. a. Citation: Cel-Tech Communications v. Los Angeles Cellular Tel. Co. (1999)
14 20 Cal.4th 163 b. Subject-matter; cross-reference: UCL fraudulent prong tethering rule;
15 Demurrer Opposition § II.B (Zhang UCL predicate). (Evid. Code § 452(d).)
16 C-58. a. Citation: Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888 b. Subject-
17 matter; cross-reference: Declaratory relief preclusive effect; Demurrer Opposition § II (fifth
18 cause of action). (Evid. Code § 452(d).)
19 C-59. a. Citation: Lucido v. Superior Court (1990) 51 Cal.3d 335 b. Subject-matter; cross-
20 reference: Actual controversy requirement for declaratory relief; Demurrer Opposition § II.
21 (Evid. Code § 452(d).)
22 C-60. a. Citation: Frommoethelydo v. Fire Ins. Exchange (1986) 42 Cal.3d 208 b. Subject-
23 matter; cross-reference: Investigation duty; insurer must conduct thorough investigation
24 before denial; Anti-SLAPP Opposition § V; Notice item 13 § IV-A. (Evid. Code § 452(d).)
25 C-61. a. Citation: Hamilton v. Maryland Cas. Co. (2002) 27 Cal.4th 718 b. Subject-
26 matter; cross-reference: Claim-file completeness duty; Anti-SLAPP Opposition § V. (Evid.
27 Code § 452(d).)
28 C-62. a. Citation: Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306 b.
29 Subject-matter; cross-reference: Deliberate-avoidance and willful blindness as malice under
30 Civ. Code section 3294; Anti-SLAPP Opposition § V; Demurrer Opposition § II. (Evid.
31 Code § 452(d).)
32 C-63. a. Citation: State Farm Fire & Casualty Co. v. Superior Court (1996) 45 Cal.App.4th

1 1093 b. Subject-matter; cross-reference: UCL predicate via Ins. Code section 790.03; De-
2 murrer Opposition § II.B. (Evid. Code § 452(d).)

3 C-64. a. Citation: Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone
4 (2003) 107 Cal.App.4th 54 b. Subject-matter; cross-reference: Reckless disregard satisfies
5 B&P section 6128(a); Anti-SLAPP Opposition § IV. (Evid. Code § 452(d).)

6 C-65. a. Citation: G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22 b.
7 Subject-matter; cross-reference: Pleading-stage standard for punitive damages under Civ.
8 Code section 3294; Demurrer Opposition § V. (Evid. Code § 452(d).)

9 C-66. a. Citation: Maslo v. Ameriprise Auto & Home Ins. (2014) 227 Cal.App.4th 626 b.
10 Subject-matter; cross-reference: Modern claim-file completeness duty; Anti-SLAPP Opposi-
11 tion § V. (Evid. Code § 452(d).)

12 C-67. a. Citation: Mariscal v. Old Republic Life Ins. Co. (1996) 42 Cal.App.4th 1617 b.
13 Subject-matter; cross-reference: Common-law neutral truth-seeking duty; Notice item 13 §
14 IV-A. (Evid. Code § 452(d).)

15 C-68. a. Citation: American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2018)
16 28 Cal.App.5th 1077 b. Subject-matter; cross-reference: Reckless disregard satisfies fraud
17 scienter; Anti-SLAPP Opposition § IV. (Evid. Code § 452(d).)

18 C-69. a. Citation: Yellow Creek Logging Corp. v. Dare (1963) 216 Cal.App.2d 50 b. Subject-
19 matter; cross-reference: Pre-Engalla recognition of reckless-disregard equivalence (cited in
20 Engalla v. Permanente Medical Group (1997) 15 Cal.4th at 974); Anti-SLAPP Opposition
21 § IV. (Evid. Code § 452(d).)

22 C-70. a. Citation: Molien v. Kaiser Foundation Hospitals (1980) 27 Cal.3d 916 b. Subject-
23 matter; cross-reference: Foreseeability of emotional and physical harm from institutional
24 misconduct; MTS-CCP-436 Opposition § II (health-related harm category). (Evid. Code §
25 452(d).)

26 C-71. a. Citation: Burgess v. Superior Court (1992) 2 Cal.4th 1064 b. Subject-matter; cross-
27 reference: Foreseeability of emotional distress from institutional conduct; eggshell-plaintiff
28 doctrine; MTS-CCP-436 Opposition § II (health-related harm category). (Evid. Code §
29 452(d).)

30 C-72. a. Citation: Gourley v. State Farm Mutual Automobile Ins. Co. (1991) 53 Cal.3d
31 121 b. Subject-matter; cross-reference: Bad-faith first-party-equivalent emotional distress;
32 MTS-CCP-436 Opposition § II (emotional distress category). (Evid. Code § 452(d).)

AUTHENTICATION AND RELIABLE-SOURCE STATEMENT

For each decision listed in Section C, the citation form is sufficient to allow the Court to consult the Official Reports or any standard legal-research database to confirm the existence and text of the published opinion. Plaintiff has independently verified the year and reporter for each citation.

For the court records identified in Section A, Plaintiff has cited the case caption, court, document number, and seq or Trans. ID where available. The records are available on the SF Superior Court eCourt Public Portal.

For the statutes and rules in Section B, the official text is available in the California Codes, the California Code of Regulations, the California Rules of Court, and the SF Local Rules.

CONCLUSION

Plaintiff respectfully requests that the Court take judicial notice of each item identified in Sections A, B, and C above, and incorporates by reference under CRC 3.1113(j) the Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) filed contemporaneously on May 8, 2026 (item 14 of the May 13, 2026 hearing package). Notice of this Request and the Supplemental Request was given to all parties contemporaneously with service of Plaintiff's Operative Oppositions (filed May 8, 2026). Pursuant to Evid. Code § 453, the predicates for mandatory judicial notice are satisfied.

Date: May 8, 2026

By: _____ Franciscus Dylan Rosario, Plaintiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Cross-references: Plaintiff's Operative Oppositions (items 01, 01B, 01C, filed May 8, 2026); Plaintiff's Notice and Statement re C.C.P. § 425.17 (item 13, filed May 8, 2026), including Section IV-A; Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (item 14, filed May 8, 2026); Plaintiff's Declaration in Opposition

1 (item 04, filed May 8, 2026); Plaintiff's Evidentiary Objections to O'Connell Declarations
2 (item 06, filed May 8, 2026); Plaintiff's Indexed Exhibits Volume (item 07, filed May 8,
3 2026); Plaintiff's Notice of Lodging (item 08, filed May 8, 2026).
4

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	Evid. Code section 451(a)	Mandatory judicial notice (statutes, rules, regulations)	Sections A, B, C take notice of statutes, rules, and decisional authority	Sections A, B, C	PASS
2	Evid. Code section 452(b), (c), (d), (h)	Permissive judicial notice (regulations, official acts, court records, facts of common knowledge)	Sections A, B, C cite the four subdivisions where applicable	Sections A, B, C	PASS
3	Evid. Code section 453	Procedural prerequisite for judicial notice	Notice given to opposing counsel via concurrent service of this RJN; supporting authorities provided in Section C	Proof of Service (POS-050) filed con- currently; Section C	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	CRC 3.1113(l)	RJN as separate document for collateral authorities	RJN catalogues authorities outside the 15-page memorandum body, in compliance with CRC 3.1113(l)	Cover statement and Section C	PASS
5	CRC 3.1306(c)	Notice of intent to rely on extra-record authorities	RJN provides advance notice of authorities relied upon	Cover statement	PASS
6	CCP section 425.16	Authority underlying the motion to which RJN responds	RJN supports opposition to the section 425.16 motion	Caption and cover statement	PASS
7	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
8	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
10	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
11	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
12	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	RJN body; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per